

M/S Prayan Ispat & Steel Pvt. Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 28 January 2016 · Writ-C No. 3458 of 2016 · **Writ disposed of; competent authority to decide pending Clause 6.5 objections within four weeks, without merits.**

HEADNOTE

Pending objections to electricity bills filed under Clause 6.5 of the U.P. Electricity Supply Code, 2005 are to be decided by the competent authority expeditiously in accordance with law. The High Court will not examine the merits of the billing claim in writ jurisdiction.

FACTUAL SUMMARY

M/S Prayan Ispat & Steel Pvt. Ltd. disputed electricity bills issued by the Executive Engineer, Electricity Distribution Division, Paschimanchal Vidyut Vitran Nigam Limited, Najibabad, Bijnor, by filing objections under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Those objections had not been decided. The company invoked the writ jurisdiction of the Allahabad High Court. Counsel for the Corporation stated that the objections would be decided.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

pending Clause 6.5 billing objections

HOLDING

Where objections to electricity bills have been filed under Clause 6.5 of the U.P. Electricity Supply Code, 2005 and remain undecided, the competent authority is to decide them expeditiously, preferably within four weeks of a certified copy of the order, in accordance with law; the Court does not adjudicate the merits of the billing claim. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S CHALLENGE TO THE ELECTRICITY BILLS

The Court expressly declined to adjudicate the claim and left it to the competent authority under Clause 6.5. ¶ 1